

26STLC00094 26STLC00094

County: los-angeles

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Case Number: 26STLC00094 Hearing Date: July 30, 2026 Dept: 26

TENTATIVE RULING:

Defendant Diamond Environmental Services, LP's (1) Motion to Compel Responses to Form Interrogatories and Request for Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents and Request for Monetary Sanctions, are granted in part and denied in part.

Plaintiff Xavier Dunn is ordered to serve responses to Form Interrogatories, Set One, and Request for Production of Documents, Set One, within 20 days' service of this order. Defendant's requests for sanctions are denied.

Analysis:

Defendant Diamond Environmental Services, LP ("Defendant") served Form Interrogatories, Set One, and Requests for Production of Documents, Set One, on Plaintiff Xavier Dunn on April 23, 2026. (Motions, Ghomi Decl., Exh. A.) Despite a meet and confer effort, to date, Plaintiff Xavier Dunn has not served verified responses to the discovery requests. (Id. at ¶¶6-8 and Exh. 2) Defendant filed the instant (1) Motion to Compel Responses to Form Interrogatories and Request for Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents and Request for Monetary Sanctions on June 25, 2026. The Motions were served on Plaintiff Xavier Dunn through Attorney Sergei N. Gladkov, Esq. by electronic mail the same day. No opposition has been filed to date.

There is no requirement for a prior meet and confer effort before a motion to compel initial responses can be filed. (Code Civ. Proc., §§ 2030.290, 2031.300.) Further, the motions can be brought at any time after the responding party fails to provide the responses. (Code Civ. Proc., §§ 2030.290, 2031.300.) Based on Plaintiff Xavier Dunn's failure to timely respond to the propounded discovery, Defendant is entitled to an order compelling service of verified responses to the discovery requests without objections.

Defendant moves for sanctions pursuant to Code of Civil Procedure sections 2023.010 and 2023.030. In *City of Los Angeles v. Pricewaterhousecoopers, LLP* (2024) 17 Cal.5th 46, the Supreme Court observed:

It is already well-established that a court may not rely on [Code of Civil Procedure] section 2023.030 to override the limitations prescribed by any other applicable sanctions provision in the [Civil Discovery] Act. A court may invoke its independent authority to impose sanctions under sections 2023.010 and 2023.030 only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision. And where it invokes that authority, it is constrained by the long-settled rules generally governing the imposition of discovery sanctions under the Act.

(City of Los Angeles v. Pricewaterhousecoopers, LLP (2024) 17 Cal.5th 46, 74-75.) The moving statutes, Code of Civil Procedure sections 2030.290 and 2031.300, only make sanctions available when a party unsuccessfully makes or opposes a motion to compel responses. (See Code Civ. Proc., § 2030.290, subd. (c); § 2031.300, subd. (c).) Plaintiff Xavier Dunn filed no opposition to the instant Motions and cannot be sanctioned under sections 2030.290 or 2031.310. Nor has Defendant shown that Plaintiff Xavier Dunn's failure to serve discovery responses is "an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision." Therefore, the Court declines to invoke its independent authority to impose sanctions under Code of Civil Procedure sections 2023.010 and 2023.030.

Conclusion

Defendant Diamond Environmental Services, LP's (1) Motion to Compel Responses to Form Interrogatories and Request for Sanctions; and (2) Motion to Compel Responses to Requests for Production of Documents and Request for Monetary Sanctions, are granted in part and denied in part.

Plaintiff Xavier Dunn is ordered to serve responses to the Form Interrogatories, Set One, and Request for Production of Documents, Set One, within 20 days' service of this order. Defendant's requests for sanctions are denied.

Moving party to give notice.